

SENATE No. 24

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the charter of the town of Sandwich.

PETITION OF:

NAME:

Dylan A. Fernandes

DISTRICT/ADDRESS:

Plymouth and Barnstable

SENATE No. 24

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 24) of Dylan A. Fernandes (by vote of the town) for legislation to amend the charter of the town of Sandwich. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the charter of the town of Sandwich.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The charter of the town of Sandwich, on file in the office of the archivist of
2 the commonwealth, as provided in section 12 of chapter 43B of the general laws, is hereby
3 amended by striking out in section 1.2 the words “board of selectmen” in each instance in which
4 they appear and inserting in place thereof the words:- select board.

5 SECTION 2. Section 3.3 of said charter is hereby amended by striking out the words
6 “board of selectmen” and inserting in place thereof the words:- select board.

7 SECTION 3. Section 3.4 of said charter is hereby amended by striking out the words
8 “board of selectmen” and inserting in place thereof the words:- select board.

9 SECTION 4. Subsection (a) of section 3.7 of said charter is hereby amended by striking
10 out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 5. The first sentence of subsection (b) of section 3.7 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 6. The second sentence of subsection (b) of said section 3.7 of said charter is hereby amended by striking out the words “Ten (10)” and inserting in place thereof the words:- Fifty (50).

SECTION 7. Subsection (c) of section 3.7 of said charter is hereby amended by striking it out in its entirety and inserting in place thereof the following new subsection:- Any budget article on the warrant shall show comparative figures including actual figures for the preceding year, appropriations for the current year, request for the next fiscal year, and amounts recommended by the finance committee. Detailed information regarding the budget numbers also shall be made available to the appropriate boards and posted on the town website for public access. For articles other than the budget that seek to raise, transfer, appropriate or expend funds, historical data, if available, shall be provided.

SECTION 8. The first sentence of subsection (d) of said section 3.7 of said charter is hereby amended by striking out the word “selectmen” and inserting in place thereof the words:- select board.

SECTION 9. Section 3.7 of said charter is hereby further amended by inserting the following new subsection:- (e) A short information summary shall accompany each warrant article.

SECTION 10. The first sentence of section 3.8 of said charter is hereby amended by striking out the first sentence and inserting in place thereof the following sentence:-

SECTION 11. Said section 3.8 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 12. The first sentence of section 4.1 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 13. The title of section 4.2 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 14. The first sentence of said section 4.2 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 15. Said section 4.2 of said charter is hereby amended by inserting the following new third sentence:- The select board shall possess all of the powers and duties of a board of selectmen under the General Laws.

SECTION 16. Section 4.2.1 of said charter is hereby amended by striking it in its entirety and inserting in place thereof the following new section: In addition to any other qualifications prescribed by law, each member of the board shall be a qualified voter of the town and shall reside within the town while in office

SECTION 17. Section 4.2.2 of said charter is hereby amended by striking it in its entirety and inserting in place thereof the following new section:- Members of the select board shall receive such compensation as may be specified in the annual budget, provided, however,

that they shall be entitled to all necessary expenses incurred in the performance of their official duties upon approval by the select board.

SECTION 18. The title of section 4.2.3 of said charter is hereby amended by striking out the words “chairman and vice chairman” and inserting in place thereof the words:- chair and vice chair.

SECTION 19. Subsection (a) of said section 4.2.3 of said charter is hereby amended by striking it in its entirety and inserting in place thereof the following new section:- A chair shall be elected by the board of selectmen select board at the first meeting following each regular town election. The chair shall preside at all meetings of the board. The chair shall perform such other duties consistent with the General Laws and this charter or as may be imposed on the chair by the board.

SECTION 20. Subsection (a) of said section 4.2.3 of said charter is hereby further amended by striking it out in its entirety and inserting in place thereof the following new section:- A vice chair shall be elected by the select board at the first meeting following each regular town election. The vice chair shall act as chair during the disability or absence of the chair and in this capacity shall have the rights and duties conferred upon the chair.

SECTION 21. The first sentence of section 4.2.4 of said charter is hereby amended by striking out the word “selectman” and inserting in place thereof the words:- select board member.

SECTION 22. The second sentence of said section 4.2.4 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 23. Said section 4.2.4 of said charter is hereby amended by striking out the third sentence in its entirety and inserting in place thereof the following sentence:- If a vacancy occurs fewer than 8 months prior to the next annual election the select board may call for a special election to fill the vacancy, or, notwithstanding the petition process laid out in section 10 of chapter 41 of the General Laws, the vacancy shall be filled at the next annual election.

SECTION 24. Subsection (a) of section 4.2.5 of said charter is hereby amended by striking out the words “board of selectmen” in each instance in which they appear and inserting in place thereof the words:- select board.

SECTION 25. Said section 4.2.5 of said charter is hereby amended by striking out subsection (b) in its entirety and inserting in place thereof the following subsection:- One member of the select board may be designated to sign official payroll and vendor warrants.

SECTION 26. Subsection (c) of said section 4.2.5 of said charter is hereby amended by striking out the words “board of selectmen” in each instance in which they appear and inserting in place thereof the words:- select board.

SECTION 27. The first sentence of subsection (d) of said section 4.2.5 of said charter is hereby amended by striking it out in its entirety and inserting in place thereof the following new sentence:-

No member of the select board may serve in any other elected or appointed town office or committee during that member’s term, excluding ex-officio positions, except that members may serve on committees when authorized by state law or town by-law.

SECTION 28. Subsection (e) of said section 4.2.5 of said charter is hereby amended by striking out the words “board of selectmen” in each instance in which they appear and inserting in place thereof the words:- select board.

SECTION 29. The fourth sentence of said subsection (e) said section 4.2.5 of said charter is hereby further amended by striking out the words “either provide direct mailings to households or”.

SECTION 30. Subsection (f) of said section 4.2.5 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 31. Subsection (h) of said section 4.2.5 of said charter is hereby amended by striking out the words “board of selectmen” in each instance in which they appear and inserting in place thereof the words:- select board.

SECTION 32. Subsection (i) of said section 4.2.5 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 33. Subsection (j) of said section 4.2.5 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 34. Subsection (k) of said section 4.2.5 of said charter is hereby amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select

115 board, and by striking out the word “selectmen” and inserting in place thereof the words:- select
116 board members.

117 SECTION 35. Subsection (l) of said section 4.2.5 of said charter is hereby amended by
118 striking out the words “board of selectmen” and inserting in place thereof the words:- select
119 board.

120 SECTION 36. The first sentence of subsection (a) of section 4.2.6 of said charter is
121 hereby amended by striking out the words “board of selectmen” and inserting in place thereof the
122 words:- select board.

123 SECTION 37. The second sentence of said subsection (a) of said section 4.2.6 is hereby
124 amended by striking out the words “by resolution,” appearing after the words “shall fix.”

125 SECTION 38. The first sentence of subsection (b) of said section 4.2.6 of said charter is
126 hereby amended by deleting it in its entirety and inserting in place thereof the following new
127 sentence:-

128 The select board may hold such special meetings as it deems necessary and appropriate,
129 which may be called by the chair or requested by a the majority of board members at a posted
130 meeting of the board.

131 SECTION 39. Subsection (a) of section 4.2.7 of said charter is hereby amended by
132 striking out the words “board of selectmen” and inserting in place thereof the words:- select
133 board.

134 SECTION 40. Subsection (b) of said section 4.2.7 of said charter is hereby amended by
135 striking out the word “selectman” and inserting in place thereof the words:- select board
136 member.

137 SECTION 41. Subsection (c) of said section 4.2.7 of said charter is hereby amended by
138 striking out the word “selectmen” and inserting in place thereof the words:- members of the
139 select board.

140 SECTION 42. Said section 4.2.7 of said charter is hereby further amended by striking
141 subsection (d) in its entirety.

142 SECTION 43. Subsection (a) of section 4.2.8 of said charter is hereby amended by
143 deleting it in its entirety and inserting in place thereof the following new subsection:- Except if
144 authorized by law, no member of the select board shall hold any other town office or town
145 employment during that member’s term, nor shall any former member of the board hold any
146 compensated appointed town office or town employment until 1 year after the expiration of term
147 as a member of the select board.

148 SECTION 44. Subsection (b) of said section 4.2.8 of said charter is hereby amended by
149 striking out the word “selectmen” in each instance in which it appears and inserting in place
150 thereof the words:- select board.

151 SECTION 45. Subsection (c) of said section 4.2.8 of said charter is hereby amended by
152 striking out the words “board of selectmen” in each instance in which they appear and inserting
153 in place thereof the words:- select board.

154 SECTION 46. The first sentence of section 4.3.2 of said charter is hereby amended by
155 inserting, after the words “shall receive no compensation” the words:- unless otherwise directed
156 by town meeting.

157 SECTION 47. The title of section 4.3.3 of said charter is hereby amended by striking out
158 the words “chairman and vice chairman” and inserting in place thereof the words:- chair and vice
159 chair.

160 SECTION 48. Subsection (a) of said section 4.3.3 of said charter is hereby amended by
161 striking out the word “chairman” in each instance in which it appears and inserting in place
162 thereof the word:- chair.

163 SECTION 49. Subsection (b) of said section 4.3.3 of said charter is hereby amended by
164 striking out the word “chairman” in each instance in which it appears and inserting in place
165 thereof the word:- chair.

166 SECTION 50. Section 4.3.4 of said charter is hereby amended by striking it in its
167 entirety and inserting in place thereof the following new section:- If a vacancy occurs on the
168 school committee, the vacancy shall be filled through a joint appointment by the select board and
169 school committee to serve until the next annual election solely in the manner set forth in section
170 11 of chapter 41 of the General Laws.

171 SECTION 51. Section 4.3 of said charter is hereby amended by inserting a new section
172 4.3.9 entitled “Prohibitions” as follows:- No member of the school committee shall be employed
173 by the Sandwich public schools during that member’s term, nor shall any former member of the
174 committee hold any compensated appointed school system office or employment with the

175 Sandwich public schools for 1 year following the expiration of their service on the school
176 committee.

177 SECTION 52. Subsection (c) of section 4.4.1 of said charter is hereby amended by
178 striking it out in its entirety and inserting in place thereof the following new subsection:- To
179 assist in the application and appointment process and better prepare potential committee
180 members, the moderator may at include participation by the chair of the select board, the chair of
181 the finance committee or the chair of the school committee, or their designated representatives.

182 SECTION 53. Said section 4.4.1 of said charter is hereby amended by inserting a new
183 subsection as follows:- (e) The moderator shall use reasonable efforts, including utilization of
184 technology and other means such as electronic voting, at town meeting in the interest of
185 conducting official business in an efficient manner.

186 SECTION 54. The second sentence of section 4.6 of said charter is hereby amended by
187 striking out the words “to a three 3-year term” and inserting in place thereof the words:- for a
188 term of 3 years.

189 SECTION 55. Section 4.6.2 of said charter is hereby amended by striking out “(a)”.

190 SECTION 56. Said section 4.6.2 is hereby further amended by striking out the second
191 sentence and inserting in place thereof the following sentence:- The board of library trustees
192 shall, except in case of those employees subject to chapter 150E of the General Laws, appoint the
193 director of the library and may enter into a contract with said director; provided, however, that
194 such contract shall meet minimum legal standards established by the select board and town
195 manager

196 SECTION 57. Section 4.6.2 of said charter is hereby further amended by striking out the
197 third sentence.

198 SECTION 58. Section 4.6.3 of said charter is hereby amended by striking out the words
199 “board of selectmen” and inserting in place thereof the words:- select board.

200 SECTION 59. Subsection (a) of section 4.7 of said charter is hereby amended by striking
201 out the words “board of selectmen” in each instance in which they appear and inserting in place
202 thereof the words:- select board.

203 SECTION 60. Said subsection (a) of said section 4.7 of said charter is further amended
204 by inserting, after the third sentence the following new sentence:- A member may be selected by
205 the multiple-member body to hold the position of presiding officer or chair for no longer than
206 two consecutive years, excluding the time served filling the unexpired term of the previous chair.

207 SECTION 61. Subsection (b) of said section 4.7 of said charter is hereby amended by
208 striking out the first sentence and inserting in place thereof the following new sentence:-
209 Members of committees shall be elected for staggered terms of 3 years or appointed for a period
210 as determined by the select board, unless otherwise provided for by the General Laws or this
211 charter.

212 SECTION 62. The second sentence of said subsection (b) of said section 4.7 is hereby
213 amended by striking out the words “selectman” and “board of selectmen” and inserting in place
214 thereof in each instance the words:- select board.

215 SECTION 63. Subsection (c) of said section 4.7 of said charter is hereby amended by
216 striking out the words “board of selectmen” and inserting in place thereof the words:- select
217 board.

218 SECTION 64. Section 5.1.1 of said charter is hereby amended by striking out the words
219 “board of selectmen” in each instance in which they appear and inserting in place thereof the
220 words:- select board.

221 SECTION 65. Said section 5.1.1 of said charter is further amended by striking out the
222 words “and need not, when appointed, be a resident of the town of Sandwich; provided however,
223 that the town manager shall establish such residence within 6 months following the effective date
224 of appointment and provided further that the board of selectmen may, by a unanimous vote of all
225 members of the board of selectmen then in office, extend to a time certain the time for
226 establishing residence or waive this requirement in its entirety”.

227 SECTION 66. Section 5.1.2 of said charter is hereby amended by striking out the words
228 “board of selectmen” in each instance in which they appear and inserting in place thereof the
229 words:- select board.

230 SECTION 67. Section 5.1.3 of said charter is hereby amended by striking out the words
231 “board of selectmen” in each instance in which they appear and inserting in place thereof the
232 words:- select board.

233 SECTION 68. Section 5.1.4 of said charter is hereby amended by striking out the words
234 “board of selectmen” in each instance in which they appear and inserting in place thereof the
235 words:- select board.

236 SECTION 69. Subsection (a) of said section 5.1.4 of said charter is hereby amended by
237 striking out the words “shall be required for appointment of department heads and the assistant
238 town manager” and inserting in place thereof the words:- shall be required for the town manager
239 to appoint department heads and the assistant town manager.

240 SECTION 70. Subsection (i) of said section 5.1.4 of said charter is hereby amended by
241 striking out the number “\$1,000,000” and inserting in place thereof the number:- \$1,500,000.

242 SECTION 71. The second sentence of subsection (n) of said section 5.1.4 of said charter
243 is hereby amended by striking out the words “a municipal light department or”.

244 SECTION 72. Subsection (n) of said section 5.1.4 of said charter is hereby amended by
245 inserting after the second sentence the following new sentence:- The town manager shall provide
246 written notice to the select board and the finance committee within 10 working days of the
247 transfer.

248 SECTION 73. Subsection (p) of said section 5.1.4 of said charter is hereby amended by
249 striking out the words “at the end of the fiscal year” and inserting in place thereof the words:-
250 and the finance committee within a reasonable time after the close of the fiscal year.

251 SECTION 74. Section 5.1.5 of said charter is hereby amended by striking out the words
252 “board of selectmen” in each instance in which they appear and inserting in place thereof the
253 words:- select board.

254 SECTION 75. Section 5.2 of said charter is hereby amended by striking out the words
255 “board of selectmen” in each instance in which they appear and inserting in place thereof the
256 words:- select board.

SECTION 76. The first sentence of article VI of said charter is hereby amended by striking it out in its entirety and inserting in place thereof the following sentence:- All officers or employees of any agency, office, department, board, commission, bureau, division or authority of the town shall comply with clause twenty-six of section 7 of chapter 4 of the General Laws and Sections 10 and 10A of chapter 66 of the General Laws, addressing public records and management..

SECTION 77. Subsection (b) of section 7.1 of said charter is hereby amended by inserting after the words “town manager” the following words:- after consultation with the school superintendent.

SECTION 78. The first sentence of said subsection (c) of said section 7.1 of said charter is hereby amended by deleting it in its entirety and inserting in place thereof the following new subsection:- On or before December 15, select board shall meet in joint session with the school committee and finance committee. At this meeting, the select board shall set guidelines for the preparation of the annual budget.

SECTION 79. Subsection (d) of said section 7.1 of said charter is further amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 80. Subsection (f) of said section 7.1 of said charter is further amended by striking out the words “board of selectmen” and inserting in place thereof the words:- select board.

SECTION 81. Subsection (g) of said section 7.1 of said charter is hereby amended by striking it in its entirety and inserting in place thereof the following new subsection 7.1:- Within

279 a reasonable time after the close of the fiscal year the select board shall meet in joint session with
280 the school committee and finance committee to identify and review issues, projects or plans that
281 might affect budgeting and budget assumptions for the next two fiscal years and to strategize
282 approaches.

283 SECTION 82. Subsection (a) of said section 7.1 of said charter is hereby deleted and the
284 remaining subsections re-lettered accordingly.

285 SECTION 83. Subsection (d) of section 7.2 of said charter is amended by striking out the
286 word “chairman” and inserting in place thereof the word:- chair.

287 SECTION 84. Subsection (a) of section 7.3 of said charter is hereby amended by striking
288 out the words “board of selectmen” and inserting in place thereof the words:- select board.

289 SECTION 85. Subsection (b) of section 7.3 of said charter is hereby amended by striking
290 out the words “board of selectmen” and inserting in place thereof the words:- select board.

291 SECTION 86. The first sentence of section 7.5 of said charter is hereby amended by
292 striking out the words “board of selectmen” and inserting in place thereof the words:- select
293 board.

294 SECTION 87. Said section 7.5 of said charter is hereby further amended by striking out
295 the third sentence in its entirety and inserting in place thereof the following new sentence:- Upon
296 completion of the audit, the results in a summary form shall be posted on the town website with
297 hard copies placed in the town clerk’s office and in the Sandwich public library.

298 SECTION 88. The first sentence of section 8.1 of said charter is hereby amended by
299 deleting it in its entirety and inserting in place thereof the following new section:- A holder of an

elected office in the town of Sandwich may be recalled there from by the qualified voters of the town as provided in Section 8 of this Charter for reasons which shall include, but are not limited to the following: embezzlement; influence peddling; refusal to comply with clause twenty-six of section 7 of chapter 4 of the General Laws (protection of information in public records), sections 10 and 10A of chapter 66 of the General Laws (public records requests), sections 18 through 25 of chapter 30A (open meeting law) or chapter 268A of the General Laws (conflict of interest) or any rules and regulations thereto, and the by-laws of the town of Sandwich that pertain to the same; destruction or alteration of public records; nepotism; conviction for a felony; failure to perform the duties of the elected office; or other willful acts of omission or commission which betray the public trust.

SECTION 89. Section 8.2 of said charter is hereby amended by striking it out in its entirety and inserting in place thereof the following new section:-

SECTION 8.2 PROCESS

(a) Any ten qualified voters of the town of Sandwich may file with the town clerk of said town an affidavit containing the name of the officer sought to be recalled and a statement of the grounds of recall. Said town clerk shall thereupon deliver to the voter making such affidavit a sufficient number of copies of petition blanks demanding such recall, printed forms of which the town clerk shall keep on hand. The blanks shall be issued by the town clerk with the town clerk's signature and official seal attached thereto and shall be dated and addressed to the select board of said town. Said blanks shall contain the name of the person to whom issued, the number of blanks to be issued, the name of the person sought to be recalled, the office from which removal is sought, the grounds of recall as stated in said affidavit, and shall demand the election of a

322 successor to such office. A copy of the petition shall be entered in a record book to be kept in the
323 office of the town clerk. Said recall petition shall be returned and filed with the town clerk within
324 twenty days after filing of the affidavit. Said petition before being returned and filed shall be
325 signed by twenty-five per cent of the qualified voters and to every signature shall be added the
326 place of residence of the signer, giving the street and number. The said recall petition shall be
327 submitted to the town clerk by three o'clock p.m. on the Friday preceding the day which it must
328 be filed, to the registrars of voters in said town, and the registrars shall forthwith certify thereon
329 the number of signatures which are names of voters of said town.

330 (b) If the petition shall be found and certified by said town clerk to be sufficient, the town
331 clerk shall submit the same with the town clerk's certification to the select board, without delay,
332 and said select board shall forthwith give written notice of receipt of said certificate to the officer
333 against whom recall is being sought. If the officer does not resign within five days thereafter,
334 said select board shall order an election to be held on a date fixed by them not less than sixty
335 days and not more than ninety days after the date of the town clerk's certificate that a sufficient
336 petition has been filed; provided, however, that if another town election is to occur within one
337 hundred days after the date of the certificate the select board may, in their discretion, postpone
338 the holding of said recall election to the date of such other election. If a vacancy occurs in said
339 office after a recall election has been so ordered, the election shall nevertheless proceed as
340 provided herein.

341 (c) Any officer sought to be removed may be a candidate to succeed themselves and, unless
342 they request otherwise in writing, the town clerk shall place their name on the ballot without
343 nomination. The nomination of other candidates, the publication of the warrant for the recall

election, and the conduct of the same, shall all be in accordance with the provisions of law relating to elections, unless otherwise provided by this act.

(d) The incumbent shall continue to perform the duties of their office until the recall election. If then reelected, they shall continue in the office for the remainder of their unexpired term, subject to recall as before, except as provided in this act. If not reelected in the recall election, they shall be deemed removed upon the qualification of their successor, who shall hold office during the unexpired term. If the successor fails to qualify within five days after receiving notification of their election, the incumbent shall thereupon be deemed removed and the office vacant.

(e) Ballots used in a recall election shall submit the following propositions in the order indicated: For the recall of (name of officer) Against the recall of (name of officer) Immediately at the right of each proposition, there shall be a square in which the voter, by making a cross mark (X), may vote for either of the said propositions. Under the proposition shall appear the word "Candidates", the directions to voters required by section forty-two of chapter fifty-four of the General Laws, beneath this the names of candidates nominated as hereinbefore provided. If a majority of the votes cast upon the question of recall is in the affirmative, the candidate receiving the highest number of votes shall be declared elected; provided that at least forty percent of those entitled to vote shall have voted. If a majority of votes on the question is in the negative, the ballot for candidates need not be counted.

(f) No recall petition shall be filed against an officer within six months after they takes office, nor, in case of an officer subject to a recall election and not recalled thereby, until at least six months after the election at which their recall was submitted to the voters.

366 SECTION 90. Said charter is hereby amended by inserting prior to section 9.1 of said
367 charter, the following new title:- Article IX Charter.

368 SECTION 91. Section 9.3 of said charter is hereby amended by striking it out in its
369 entirety and inserting in place thereof the following new section:- At least every 10 years or as
370 deemed necessary by the select board, the select board shall appoint a charter review committee
371 to be composed of seven 7 members for a period not longer than 6 months or such other period
372 of time determined by the select board in its discretion, who shall submit their recommendations
373 to the select board and shall file proceedings of their deliberations.

374 SECTION 92. Section 9.5 of said charter is hereby amended by striking out the words
375 “board of selectmen” and inserting in place thereof the words:- select board.

376 SECTION 93. Section 9.6 of said charter is hereby amended by striking it in its entirety.

377 SECTION 94. This act shall take effect upon its passage.